र्यालय, अधिशासी अभियन्ता,
ण शाखा (गंगा)
उत्तराखण्ड जल संस्थान,
जगजीतपुर, हरिद्वार – 249408
ई–मेल – eegangaujs@gmail.com

जल संचय – जीवन संचय

Office of The Executive Engineer
Maintenance Division (Ganga)
Uttarakhand Jal Sansthan
Jagjeetpur Haridwar - 249408
Email - eeganga-ujs-uk@nic.in

प्रेषक

M/S Eco Saver Technologies and services,
Near Bada Jain Mandir,Rampur, Saharanpur
JV PP Contractors and Repair JOB
Haridwar

पत्रांक – 2293 /कार्यादेश /2021–22 दिनांक – 31/01/2022

विषय – OPERATION & MAINTENANCE of 18 MLD SEWAGE TREATMENT PLANT(A.S.P. Technology) JAGJEETPUR, HARIDWAR

उपरोक्त विषयक इस कार्यालय के पत्रांक 1721/निविदा/2021–22 दिनांक 12.11.2021 द्वारा **OPERATION & MAINTENANCE of 18 MLD SEWAGE TREATMENT PLANT(A.S.P. Technology) JAGJEETPUR, HARIDWAR** हेतू आमंत्रित निविदा के संबंध में आपके द्वारा समस्त अपेक्षित प्रपत्र उलब्ध कराये जाने के उपरान्त प्रश्नगत कार्य का निम्नविवरणानुसार अनुबन्ध गठित किया जाता है–

क0 स0	कार्य का विवरण	अनुबन्ध सं0	अनुबन्ध की लागत (जी0एस0अतिरिक्त)	प्रस्तावित अवधि	
				से	तक
1	OPERATION & MAINTENANCE of 18 MLD SEWAGE TREATMENT PLANT(A.S.P. Technology) JAGJEETPUR, HARIDWAR	04/ई0ई0/2021–22 दिनांक –01.02.2022	रू0 43,80,000.00	01.02.2022	31.01.2023

अतः कार्य अनुबन्धानुसार दिनांक –01.02.2022 से प्रारम्भ करते हुये निम्न नियमानुसार कार्यवाही किया जाना सुनिश्चित करे।

1. जी0एस0टी0 अतिरिक्त देय होगा।
2. द्वितीय पक्ष द्वारा सहायक अभियन्ता/कनिष्ठ अभियन्ता के निर्देशानुसार एवं निर्धारित मानकों के अनुरूप कार्य किया जायेगा। सहायक अभियन्ता/कनिष्ठ अभियन्ता द्वारा कार्य संतोषजनक होने का प्रमाण पत्र उपलब्ध कराने के उपरांत ही भुगतान किया जाना संभव होगा।
3. द्वितीय पक्ष द्वारा कराये गये कार्यो के देयको से नियमानुसार करो की कटौती कर अधिशासी अभियन्ता, अनुरक्षण शाखा (गंगा), उत्तराखण्ड जल संस्थान हरिद्वार द्वारा द्वितीय पक्ष को भुगतान किया जाएगा।
4. कार्य सन्तोषजनक न होने की स्थिति में उक्त अनुबन्ध किसी भी समय निरस्त किया जा सकता है।
5. देयको के भुगतान के समय कार्यरत समस्त श्रमिको के ई0पी0एफ0 तथा ई0एस0आई0 सम्बन्धित समस्त दस्तावेज प्रस्तुत करने अनिवार्य है। जिनका भुगतान विभाग द्वारा पृथक रूप से नही किया जायेगा।

(अजय कुमार)
अधिशासी अभियन्ता

पृष्ठांकन संख्या एवं दिनांक तदैव।

प्रतिलिपि – निम्नलिखित को सूचनार्थ एवं आवश्यक कार्यवाही हेतु प्रेषित।

1. अधीक्षण अभियन्ता, उत्तराखण्ड जल संस्थान, पंतद्वीप हरिद्वार।
2. सम्बन्धित सहायक अभियन्ता/कनिष्ठ अभियन्ता, (गंगा), उत्तराखण्ड जल संस्थान, हरिद्वार।
3. मण्डलीय लेखाकार (गंगा), उत्तराखण्ड जल संस्थान, हरिद्वार।
4. अनुबन्ध पत्रावली हेतु।

अधिशासी अभियन्ता

Scanned with OKEN Scanner

(3)

00

सत्यमेव जयते

INDIA NON JUDICIAL

Government of Uttarakhand

e-Stamp

Certificate No.	:	IN-UK557286822360 96T
Certificate Issued Date	:	24-Nov-2021 01:37 PM
Account Reference	:	NONACC (SV)/ uk1209004/ HARIDWAR/ UK-HD
Unique Doc. Reference	:	SUBIN-UKUK120900415739796792296T
Purchased by	:	Eco Saver Technologies And Services
Description of Document	:	Article Miscellaneous
Property Description	:	-
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	Eco Saver Technologies And Services
Second Party	:	NA
Stamp Duty Paid By	:	Eco Saver Technologies And Services
Stamp Duty Amount(Rs.)	:	100 (One Hundred only)

Sachin Gupta
E-Stamp Vendor
Tehsil Haridwar
License No. 176/13

Please write or type below this line (T-1)

FORM OF AGREEMENT

(To be filled in at the time of Agreement by successful Bidder on Rs. 100.00 Non-Judicial Stamp Paper)

CB NO-04 / EE /2021-22 dated -01.02.2022

This INDENTURE made the Day of-01.02.2022 between **M/S Eco Saver Technologies JV PP Contractors and Repair JOB** (hereinafter called the contractor) which expression shall where the context so admits or implies be deemed to include his heirs, executors and administrators of One Part AND the Chief General Manager of Uttarakhand Jal Sansthan (UJS) hereinafter called the CGM which expression shall where the context so admits or implies, be deemed to including his successors in office and assign of the part, WHERE the said UJS required the execution of certain works for **OPERATION & MAINTENANCE of 18 MLD SEWAGE TREATMENT PLANT(A.S.P. Technology) JAGJEETPUR, HARIDWAR**

Executive Engineer
Maintenance Division (Ganga)
Uttarakhand Jal Sansthan
Haridwar

For Eco Saver Technologies & Services
Prop.

Statutory Alert:
1 The authenticity of this stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid
2 The onus of checking the legitimacy is on the users of the certificate
3 In case of any discrepancy please inform the Competent Authority

Scanned with OKEN Scanner

The Contractor shall be subject to the following liquidated damages and penalties for its failure to carry out its relevent operations as indicated below.

S.No.	Basis of penalty	Penalty Benchmark	Penalty Value
1	Failure to maintain PH /BOD /COD /TSS /Fecal coli form within prescribed limits Detected as per reports of daily samples tested in lab by the Employer and outlet quality to be achieved as per Tender provisions	Up to 2 Occurrence/month	1,000/-per Occurrence
		2 to 5 Occurrence/month	5,000/-per Occurrence
		5 to 10 Occurrence/month	1,0000/-per Occurrence
		Above 10 Occurrence/month	Termination
		Samples tested by PCB/PCRI exceeding prescribed outlet parameters	25,000/- per Occurrence
2	Non-operating any working Equipment/Drive more than 4 hours except the Equipment/Drive under maintenance	more than 4 hours	1000/-per Drive hour after permissible limit of 4 hours
3	Over Power Consumed The contractor has to guarantee the maximum Guaranteed Power Consumption For entire plant (When DG is used , the electricity consumption shall be determined as follows Electricity Consumption (KW hr)+1.10 times the Electricity Equivalent of Diesel Consumed (KWH)	for power increased beyond current base level based on Effluent Discharge Schedule on monthly basis	4.50/KW hr. of extra power consumed or @prevailing Tariffs applied by state electricity Authority whichever is higher
4	Inappropriate de-sitting of Sewers and clearing of silt in premises	Per Occurrence	1000 per Occurrence
5	Delay in recording of energy Meter Reading, Power failure time or Diesel Consumption	Per Occurrence	100 per Occurrence
6	Duty Staff not wearing uniform or it being dirty.	Per Occurrence	100 per Occurrence
7	Minimum Maintenance time will be 15 Days for any maintenance activity which is not responsible for poor quality of treated sewage.	Every day after splayed time of 15 days	15000/- Per Day
8	Any Maintenance works which are related to quality of treated sewage have to do within 24 hour with prior information / permission of Engineer in Charge (Verbal, Telephonic or any fasted mode	more than 24 hour	15000/- Per Hour
9	Damaged of Coarser Screen Bar/Conveyor Belt	01 Month	2000/-Per Day
10	Damaged of M.P.S. Pumps	15 Days	2000/- Per Day

For Eco Sewer Technologies & Services

Executive Engineer
Jal Nigam Division (Ganga)
Uttarakhand Jal Sansthan
Haridwar

Scanned with OKEN Scanner

11	Damaged of Fine Screen Bar / Conveyor Bar	01 Month	2000/- Per Day
12	Damaged of Ras Pumps/Sas Pumps	15 Days	1000/- Per Day
13	Damaged of Chlorine Booster Pump	7 days	1000/- Per Day
14	S.B.C. Poly Dosing Pumps	7Days	1000/- Per Day
15	Damaged of Air Blowers for digester	15 Days	1000/- Per Day
16	Damaged of Centrifuse pumps /Thickner feed Pumps	01 Months	1000/- Per Day
17	Damaged of Air Blower for C-Tech	01 Months	5000/- Per Day
18	Lighting System in Plant	2 days	5000/- Per Day
19	Damaged of Lab Equipments	7 Days	5000/- Per Day
20	Damaged of Scalan System	1 Week	5000/- Per Day
21	Damaged of Chloronator	1 week	2000/- Per Day

8 **Intellectual Property & confidential Information**

The parties agree that all details plans manuals documentation specifications schedules programs reports calculations and other work relating to the facilities and /or Systems and the provision of operations pursuant to this Contract (hereafter referred to as proprietary Material) which have been or are hereafter written originated or made by any of them or any of their respective employees sub-contractors or agents and by the persons related to the contractor in connection with this contract shall be owned by and be the property of the Employer the determination of information as proprietary Materials shall be made at the sole discretion of the Employer .

The contractor shall have an irrevocable royalty-free non-exclusive license to use the proprietary material during the term of this contract for all purposes connected with fulfilling its obligations hereunder however this license under this contract such license shall not continue after the suspension or termination of this contract or the discharge by the contract of its duties hereunder .

9. Confidentiality

The contractor shall cause the persons related to the operator not to without the prior written consent of the Employer at any time divulge or disclose to any person or use for any purpose unconnected with the operations proprietary material under this contraction this shall not apply to information.

- Already in the public domain otherwise than by breach of this contract.
- Already to the possession of the receiving party before it was received from the office party in connection with this contract and which was not obtained under any obligation of confidentiality.

The contract shall whenever required take necessary steps to ensure that all persons employed by it under this contract comply with the Indian official secrets Act 1923 (XIX of 1923) and agree that it applies to them and shall continue to apply even after completion of this contract.

No photographs of the Facilities or system or any part there of or equipment employed thereon shall be taken or permitted by the contractor to be taken by any of its employees or any employees of its sub-contractor without the prior approval of the Engineer in writing and no such photographs shall be published or otherwise circulated without the approval of the Engineer in writing .

The Employer shall use its best efforts to ensure that the confidential proprietary information relating to the Contractor is not made public However the Employer shall not be liable in any manner whatsoever in case such information becomes public.

10. Assignment

The contractor shall not subcontract the whole of the operations or a substantial part thereof Except where otherwise provided by the contract the contractor shall not subcontract any part of the operations without the prior consent of the Engineer any such consent shall not relieve the contractor from any liability or obligations under the contract and it shall be responsible forth acts defaults and neglects of any

For Eco Sewer Technology Pvt. Ltd.
Prop.

Executive Engineer
Uttarakhand Jal Sansthan (Ganga)
Uttarakhand Peyjal Nigam
Haridwar

Scanned with OKEN Scanner

subcontractor its agents servants or workmen as fully as if they were the acts defaults or neglects of the contractor its agents servants or workmen.

The contractor shall not be required to obtain such consent for

- The provision of labour or
- The purchase of materials specified in the contract.

In the event of a subcontractor having undertaken towards the contractor in respect of the work executed or the goods materials plant or operation supplied by such subcontractor any continuing obligation extending for a period exceeding that the of the contract period under the contract the contractor shall at any time after the expiration of such period assign to the Employer at the Employers request and cost the benefit of such obligation for the unexpired duration there of

11. Default of Contractor

Event of Default

a) At any time after the Commencement Date, the Engineer may investigate each case where the Contractor has failed to properly perform the operation in accordance with this Contract. The Engineer shall issue a notice to the Contractor, instructing him to rectify the failure within a reasonable time.

b) An event lf default on the part of its Contractor nein unable to fulfill its services obligations under the Contract shall be deemed as a serious default and is said to have occurred doubts any of the following causes.

c) The Engineer certifies to the Employer with a copy to the Contractor that in its opinion the Contractor.

- Has repudiated the Contractor.
- Without reasonable excuse has failed to commence operations in accordance with the Contract and pursuant to the Commencement date or failed to complete the operations within the time stipulated for completion

d) Gross misconduct of the Contractor

e) Despite previous warning from the Engineer in writing is otherwise persistently or flagrantly neglecting to comply with any of its obligations under the contract.

f) Contractor persistently fails to follow good operating practice in execution of the contract.

g) If the contractor changes the use to which any part or whole of the site is put or initiates a variation without the required approval of the Engineer.

h) The Contractor stops providing the operation for one day and the stoppage has not been authorized by the Engineer.

i) The Engineer gives notice that failure to correct a particular defect is a fundamental breach of Contract and the Contractor fails to correct it within a reasonable period of time determined by the Engineer.

j) If the Contractor is in breach of any law or statute government the operation

k) The contractor does not maintain a security which is required and

l) The contractor in the judgment of the Employer has engaged in corrupt practices fraudulent practices in competing for or in carrying out the operations under the contract.

m) If the contract fails to obtain or keep in force the insurance requirements under this contract.

n) The contractor (in case of a consortium) has modified the composition of the consortium and/or the responsibility of each member of the consortium without prior approval of the Employer.

o) The contractor is enabling to maintain the composition and structure of its organization due to any of the following causes.

- The contractor enters into voluntary or involuntary bankruptcy or liquidation.
- The contractor becomes insolvent.
- A receive administrator trustee or liquidator is appointee over any substantial part of its assets

Executive Engineer
Maintenance Division (Ganga)
Uttarakhand Jal Sansthan
Haridwar

For Eco Saver Technologies & Services
Prop.

Scanned with OKEN Scanner